

LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.5229 of 2026

M/s Popular International (Pvt.) Ltd.

Versus

Government of Punjab through its Secretary Health and others

Petitioner by:- Mr. Yasir Akram Qureshi, Advocate.

Respondents by: Mr. Mohammad Osman Khan, Assistant Advocate General, Punjab.
Mr. Rashid Mehmood Gill, Advocate for respondent No.2.
Barrister Asim Malik, Advocate for respondent No.3.
Ms. Qurat-ul-Ain, Law Officer, office of Specialized Healthcare and Medical Education Department, Lahore. (respondent No.4).
Mr. Bilal Ahmad, Consultant (Legal) for respondent No.5.
M/s Muhammad Zeeshan Akhtar, Muhammad Usman and Muhammad Akhtar Aleem, Advocates for respondent No.7.

Date of hearing: - **24.02.2026**

JUDGMENT

RAHEEL KAMRAN, J.: Through the instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), the petitioner calls in question the *vires* of order dated 20.11.2025 passed by the Managing Director, Punjab Public Procurement Regulatory Authority, Lahore (hereinafter referred to as “MD PPRA”). By virtue of the impugned order, complaints filed by respondents No.6 and 7 were accepted and the decisions of the Technical Evaluation Committee (TEC) as well as the

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Grievance Redressal Committee (GRC) constituted by the Procuring Agency i.e. Services Hospital, Lahore were set aside and respondents No.6 and 7 namely M/s Anwar & Sons and M/s Akram Brothers & Co., were declared technically responsive to the extent of the item in question i.e. “sutures”, with a direction to the Procuring Agency to proceed further subject to fulfillment of all legal and codal requirements.

2. Briefly stated, the Procuring Agency initiated a procurement process for the financial year 2025-26 for purchase of medical devices including sutures. Upon technical evaluation, the products quoted by respondents No.6 and 7 were declared technically non-responsive on the basis of end-user evaluation. The said decision was assailed before the GRC, which affirmed the findings of the TEC. Thereafter, respondents No.6 and 7 invoked the jurisdiction of PPRA by filing complaints under the Punjab Procurement Rules, 2014 (the “Rules, 2014”). After affording opportunity of hearing to all concerned, the MD PPRA passed the impugned order whereby the decisions of the TEC and GRC were set aside and the complainants were declared responsive for the item in question. The petitioner, being an unsuccessful competitor, has challenged the said order in constitutional jurisdiction.

3. Learned counsel for the petitioner contends that the MD PPRA exceeded its statutory mandate by substituting its own findings for those of the TEC and GRC and by directly declaring respondents No.6 and 7 as responsive. It is argued that the technical evaluation was based upon end-user assessment and that PPRA could not assume the role of a technical forum. According to the learned counsel, such substitution amounts to exercising appellate jurisdiction over technical determinations, which is impermissible in law.

4. Conversely, learned Assistant Advocate General as well as learned counsel for the private respondents support the impugned order and submit that PPRA, being the statutory regulator under the Punjab Procurement Regulatory Authority Act, 2009 (the “Act, 2009”), is vested with supervisory jurisdiction over procurement processes. It is contended that the rejection of the complainants’ products was premised upon subjective end-user feedback lacking scientific or regulatory basis,

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despite the products possessing recognized certifications acknowledged by the Drug Regulatory Authority of Pakistan (DRAP).

5. I have heard learned counsel for the parties at considerable length and have perused the record with their able assistance. The principal question for determination is whether the MD PPRA acted within the bounds of its statutory authority while setting aside the decisions of the TEC and GRC and declaring respondents No.6 and 7 technically responsive.

6. The statutory scheme under the Act, 2009 read with the Rules, 2014 establishes a structured regulatory regime aimed at ensuring transparency, competition, fairness and value for money in public procurement. Rule 67 provides for constitution of a Grievance Redressal Committee as an internal forum, whereas Rule 67A empowers the Authority to examine complaints against decisions of the GRC. The supervisory jurisdiction conferred upon PPRA is not illusory, rather, it is intended to safeguard the integrity of procurement processes and to prevent mis-procurement. A careful reading of the impugned order reveals that the MD PPRA did not embark upon an independent technical reassessment of the products. Instead, it found that the rejection of the complainants' sutures was solely predicated upon end-user evaluation unsupported by scientific evidence-based backing. The order further records that the Procuring Agency is not authorized to conduct clinical trials and that arbitrary exclusion of products possessing internationally recognized certifications may restrict competition and tilt the procurement process in favour of selected bidders. The MD PPRA also observed that such practices contravene regulatory standards recognized by DRAP and undermine the principles of fair competition and transparency.

7. The reasoning assigned by the MD PPRA cannot be termed extraneous or perverse. Technical disqualification must be grounded in objective criteria traceable to the bidding documents or statutory standards. Where rejection is founded upon subjective impressions of end users and in absence of demonstrable scientific validation or regulatory non-compliance, such determination becomes vulnerable to

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challenge on the touchstone of transparency and equal treatment. The contention that PPRA could not declare the complainants responsive is also without substance. Once the foundational basis of rejection i.e. arbitrary end-user evaluation, was declared void ab initio, the natural corollary was restoration of the complainants' status as technically compliant bidders, subject of course to fulfillment of other codal requirements. This was not an exercise of technical substitution but a corrective regulatory intervention to undo an illegality. The supervisory authority, when confronted with a manifestly unsustainable ground of disqualification, is competent to grant consequential relief.

8. It is pertinent to observe that public procurement involves expenditure of public funds and must adhere to constitutional guarantees of fairness and non-discrimination. The regulatory oversight exercised by PPRA in the present case is aligned with these constitutional imperatives. No *mala fide*, jurisdictional defect or patent illegality has been demonstrated in the impugned order warranting interference in exercise of constitutional jurisdiction under Article 199 of the Constitution. The scope of judicial review in procurement matters is limited. This Court does not sit as an appellate forum over regulatory determinations unless the impugned action is shown to be *coram non judice*, arbitrary or in violation of law. The impugned order reflects due consideration of the record, hearing of the parties and assignment of cogent reasons rooted in procurement principles.

9. For the foregoing reasons, the impugned order does not suffer from any jurisdictional infirmity or legal perversity. The petition being devoid of merit is accordingly dismissed.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**